

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

MILTON CLAFFORD,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER SHANNON CONLISK, Tax No.
958422 and SERGEANT KENNY CHAN, Tax No.
926460,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 5, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER SHANNON CONLISK, Tax No. 958422, 73rd Precinct, 1470 E New York Ave, Brooklyn, NY 11212
SERGEANT KENNY CHAN, Tax No. 926460, 73rd Precinct, 1470 E New York Ave, Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MILTON CLAFFORD,

Plaintiff,

-against-

POLICE OFFICER SHANNON CONLISK, Tax No.
958422 and SERGEANT KENNY CHAN, Tax No.
926460,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MILTON CLAFFORD, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On August 6, 2016, at approximately 3:30 p.m., plaintiff Milton Clafford, while lawfully present in the vicinity of Sutter Avenue and Mother Gaston Boulevard, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was denied the right to due process and a fair trial when a criminal prosecution was initiated against him based upon false, misleading and incomplete information provided to the Kings District Attorney's Office by the defendant police officers, and plaintiff was charged with crimes he did not commit, including Criminal Possession of a Forged Instrument. Plaintiff was forced to appear in court on approximately 5 occasions until all criminal charges brought against plaintiff were dismissed and sealed on or about April 5, 2017. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff MILTON CLAFFORD is a resident of the state of New York.

3. POLICE OFFICER SHANNON CONLISK, Tax No. 958422, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER SHANNON CONLISK, Tax No. 958422, is and was at all times relevant herein, assigned to the 73rd Precinct.

5. POLICE OFFICER SHANNON CONLISK, Tax No. 958422, is being sued in her individual and official capacity.

6. SERGEANT KENNY CHAN, Tax No. 926460, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT KENNY CHAN, Tax No. 926460, is and was at all times relevant herein, assigned to the 73rd Precinct.

8. SERGEANT KENNY CHAN, Tax No. 926460, is being sued in his individual and official capacity.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On August 6, 2016, at approximately 3:30 p.m., plaintiff was lawfully driving his motor vehicle in the vicinity of Sutter Avenue and Mother Gaston Boulevard, Brooklyn, New York, when the defendant police officers unlawfully stopped his vehicle, and unlawfully

stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or any legal justification.

14. At no point in time did plaintiff violate any Vehicle Traffic Law or any law whatsoever.

15. Nevertheless, the defendant police officers unlawfully pulled over plaintiff's motor vehicle and detained plaintiff without reasonable suspicion or probable cause.

16. The defendant police officers requested that plaintiff provide them with his driver's license and registration for the motor vehicle.

17. Plaintiff complied with the defendant police officers requests and provided them with his valid driver's license and registration.

18. At no point in time did plaintiff commit any crime whatsoever, nor did the defendant police officers have legal justification or probable cause to believe plaintiff committed any crime.

19. Nevertheless, plaintiff was unlawfully handcuffed and arrested without legal justification or probable cause.

20. Plaintiff was transported by the defendant police officers to the 73rd Precinct against his will, where he was photographed, searched, fingerprinted and then placed in a holding cell by the defendants.

21. On August 7, 2016, plaintiff was transported to Kings County Central Booking and detained in a holding cell.

22. Thereafter, the defendant police officers provided the Kings County District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

23. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that plaintiff was in possession of forged temporary license plates.

24. On August 7, 2016, at approximately 11:30 p.m., after approximately 36 hours in custody, plaintiff was arraigned in Kings County Criminal Court, charged with crimes he did not commit and released on his own recognizance.

25. The defendant police officers unlawfully charged plaintiff with PL 170.20 – Criminal Possession of a Forged Instrument in the Third Degree and VTL 1111(d)(1) – Failure to Obey Traffic Control Signal.

26. Thereafter, plaintiff was forced to appear in court on approximately five occasions until all charges were dismissed and sealed on April 5, 2017.

27. As a result of the false arrest and denial of plaintiff's right to due process and a fair trial, plaintiff lost his job as a barber at Upper Cutz Barber Shop and remained unemployed for approximately 1 year, causing plaintiff to lose approximately \$28,800 of income.

28. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, and denial of due process and the right to a fair trial against plaintiff.

29. The unlawful search, false arrest, and false imprisonment, and denial of a right to fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

30. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.

31. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

32. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

35. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

36. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

37. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

38. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

41. The conduct of defendants in stopping, frisking, and searching plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

42. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

45. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

48. Defendants lacked probable cause to search plaintiff.

49. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein

54. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

55. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

56. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

57. In withholding/creating false evidence against plaintiff Milton Clafford, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

58. As a result of the foregoing, plaintiff Milton Clafford, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

64. Defendants failed to intervene to prevent the unlawful conduct described herein.

65. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 5, 2019

/s/
STUART E. JACOBS